

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3720

By: Hall

AS INTRODUCED

An Act relating to agriculture; creating the Access to Healthy Local Food Act; defining terms; exempting direct-to-consumer sales of local food from all licensing, inspection, and other requirements if certain conditions are met; providing conditions; providing that a homemade food product producer may obtain a registration number upon payment of annual fee; allowing assigned registration number to be used on product labels instead of certain other information; allowing farm to sell and serve local food in certain circumstances; providing act shall not be construed to impede certain investigations; providing the Department of Agriculture, Food, and Forestry shall have the authority to request proof of certain information from producer; providing fine for violation; providing that this act does not prevent counties from enacting certain ordinances; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 5-4A.1 of Title 2, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Access to Healthy Local Food Act".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 5-4A.2 of Title 2, unless there
3 is created a duplication in numbering, reads as follows:

4 As used in this act:

5 1. "Direct-to-consumer sale" means the sale of food directly to
6 an informed end consumer by the producer at any location, including
7 a farm;

8 2. "Farm" means a farm in this state that grows and harvests
9 agricultural products, including fruit and vegetables, or that
10 raises and produces dairy products;

11 3. "Informed end consumer" means the person who is purchasing
12 local food for immediate consumption or consumption thereafter who
13 has been given written notice that the product is exempt from state
14 licensing and inspection in accordance with Section 3 of this act;

15 4. "Local food" means food that is produced in this state and
16 sold in a direct-to-consumer sale. It excludes meat, poultry,
17 seafood, unpasteurized dairy products, cannabis or marijuana
18 products, and low-acid canned products;

19 5. "Produce" shall have the same meaning as defined in Section
20 5-4.2 of Title 2 of the Oklahoma Statutes; and

21 6. "Producer" means the person who produced the food.

22 SECTION 3. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 5-4A.3 of Title 2, unless there
24 is created a duplication in numbering, reads as follows:

1 A. Direct-to-consumer sales of local food shall be exempt from
2 all licensing, inspection, and other requirements of the State
3 Department of Health and the Oklahoma Department of Agriculture,
4 Food, and Forestry if the following conditions are met:

5 1. The producer of the local food shall complete and pass food
6 safety training from a list of providers, including ServSafe Food
7 Handler Training, approved by the Department of Agriculture, Food,
8 and Forestry. The food safety training shall be available to
9 complete online and shall not exceed eight (8) hours in length;

10 2. If the food is not a whole, uncut, raw fruit or vegetable,
11 the following information shall be provided in a legible format to
12 an informed end consumer on the label or in writing at the point of
13 sale:

- 14 a. the name and phone number of the producer,
- 15 b. the physical address where the local food product was
16 produced,
- 17 c. a description of the local food,
- 18 d. the ingredients of the local food in descending order
19 of proportion,
- 20 e. a statement indicating the presence of any of the six
21 most common allergens, including milk, eggs, peanuts,
22 tree nuts, soy and wheat, and
- 23 f. written notice stating, "This product is exempt from
24 state licensing and inspection", and

1 3. The producer complies with all local zoning laws.

2 B. A homemade food product producer may obtain a registration
3 number upon the payment of an annual fee of Fifteen Dollars (\$15.00)
4 to the Department of Agriculture, Food, and Forestry that is good
5 for one (1) year from the date of its issue. The assigned
6 registration number may be used on product labels instead of the
7 producer's name, telephone number, and the physical address of the
8 location where the local food product was produced.

9 C. A farm may sell and serve local food on the farm where the
10 food is grown or produced to an informed end consumer using an agent
11 or employee at the farm, provided the farm satisfies all other
12 conditions provided in subsection A of this section.

13 D. Nothing in the Access to Healthy Local Food Act shall be
14 construed to impede the State Department of Health in any
15 investigation of a reported foodborne illness. Upon receipt of a
16 consumer complaint, the Department of Agriculture, Food, and
17 Forestry shall have the authority to request proof of completion of
18 the food safety training and ensure a producer has complied with the
19 act's labeling and delivery requirements. The Department of
20 Agriculture, Food, and Forestry may fine a producer who violates
21 this act up to Three Hundred Dollars (\$300.00) per violation.

22 E. Nothing in the Access to Healthy Local Food Act shall be
23 construed to prevent counties from enacting ordinances regulating
24 the sale of food, provided such ordinances do not conflict with the

1 provisions of this act or impede or restrict the sale of products in
2 compliance with the law.

3 SECTION 4. This act shall become effective November 1, 2026.

4

5 60-2-14115 JL 01/09/26

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24